



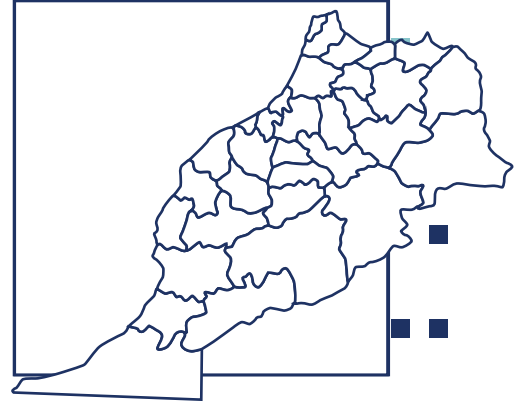
MENA OBSERVATORY
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مركز الشرق الأوسط وشمال إفريقيا للأبحاث الإصطناعية المسؤولة



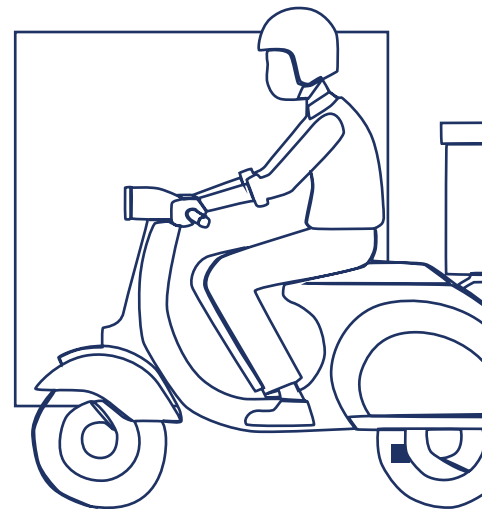
New Work, Data and Inclusion in the Digital Economy: A Middle East and North Africa (MENA) Perspective



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MOROCCO: PLATFORM WORK POLICY BRIEF



1. Key Messages for Policy Makers

- The misclassification of platform workers as independent contractors, the lack of labor code protections, the lack of common workplaces and high turnover rates contribute to the difficulty unions face in informing platform workers about their rights and bringing them into union ranks.
- Success stories in the Philippines, Columbia, and Nigeria have shown that it is possible for unions to revise their organizing approaches and scope, creatively engage and educate platform workers, advocate for policies that protect those workers, and work to ensure that all workers can make a dignified wage in a “workplace” that guarantees them their rights and safety.
- No matter the legal classification of platform workers, they are entitled to dignity at work, social protections and the freedom of association.

2. Introduction

Union density is on the decline across the globe. Morocco is no exception. The decline in industrial activity, advances in technology and digitization, and globalization have changed the composition of employment relations and trade union membership in the country. For platform workers with no relationship to their “boss” beyond an algorithm, the possibility of decent work conditions, life-sustaining wages and access to rights are distant possibilities, especially with unions struggling to reach, educate and organize them. As work becomes increasingly based on applications, traditional forms of organizing become less effective.

This raises the question as to the role of the Moroccan labor movement in the future of work. A scenario where organized labor is marginalized is possible, as members are lost to gig employment or labor unions are replaced with other models of social work and/or representation, such as self-organizing or collaborations with nongovernmental organizations. Another scenario could see unions include platform workers in their ranks to advocate for this growing, precarious workforce’s rights.

3. Underlying Factors

The International Labour Organization conducted surveys between 2017 and 2020¹ with 12,000 workers working in the platform economy² in 100 countries. Globally, platform workers are typically male, under 35 years old and educated, with platform work being their main source of income. They tend to work long hours. Drivers work an average of 65 hours a week, and delivery workers work 59 hours a week.

Work pressures include traffic, low pay, lack of orders/clients, workplace injury and the pressure to drive at high speeds. Discrimination and harassment from customers, restaurant management, and the police is common, especially for women. An unfair, algorithmically managed rating system results in reduced work and bonuses, penalties and account deactivation. There is no health insurance or other insurance that covers workplace injuries, unemployment or disability. And there are no retirement policies. The ILO study found that the lack of alternative employment opportunities, job flexibility and satisfactory pay compared to other available jobs are key motivating factors for engaging in platform work, and that work on digital labor platforms is the main source of income for the overwhelming majority of workers on location-based platforms.

Some of the working conditions platform workers face are reminiscent of the pre-unionization industrial era, when worker rights were nonexistent, working hours unlimited, and pay was low. The birth of the union movement as we know emerged with the dawn of the industrial age. The global rebirth of the union movement must happen in the dawn of the digital age.

1 International Labour Organization, “Digital platforms and the world of work in G20 countries: Status and policy action,” 2021, Retrieved from https://ilo.org/wcmsp5/groups/public/—dgreports/—cabinet/documents/publication/wcms_814417.pdf

2 Decent Work in the Platform Economy,” International Labor Organization, 2022, https://www.ilo.org/wcmsp5/groups/public/—ed_norm/—relconf/documents/meetingdocument/wcms_855048.pdf (“Among official institutions, including the ILO, no definition exists as to what the platform economy might be. Moreover, different terms are used to refer to this phenomenon: collaborative consumption, collaborative economy, sharing economy, peer-to-peer economy, short-term services or gig economy, demand economy or platform economy. However, in specialized literature the latter term has been gaining more followers. Its main strength is that it places emphasis on what lies at the core of these activities, namely the fact that they are conducted using a platform.”) Therefore, the ILO’s use of the term ‘platform economy’ is referring to the same phenomenon as Tucker’s platform mediated work.

4. Analysis of Current Policy/Legal Landscape

According to the Moroccan law that regulates individual entrepreneurship (Law 114-13), platform workers are designated as “self-employed entrepreneurs.” Moroccan legislation attempted to regulate the platform worker labor market with a law governing “self-employed entrepreneurs” that came into effect in 2015. In 2022, the government worked to offer some protections to platform workers by allowing them to enroll in health insurance at a cost to the individual worker. To date, only 48,577 “self-employed” entrepreneurs out of 317,744 eligible for health insurance made contributions to be enrolled in health coverage. While platform workers are eligible for social protection policies in theory, none of the 12 platform workers we spoke to over the course of our research was enrolled in social protection because it was too cost prohibitive. Moreover, because platform workers are designated as “self-employed entrepreneurs” the Labor Code and all its protections in terms of wages, hours of work, right to a disciplinary process does not apply to platform workers in Morocco because they are not classified as “workers.”

5. Policy Recommendations

The policy recommendations presented in this report are largely aimed at suggesting ways through which labor unions can incorporate platform workers into their efforts to offer worker protections. For labor unions to be able to fulfill that role effectively, the government must also play a role. Policy recommendations for the government are highlighted toward the end of the report.

a. Organizing and Outreach

- Collect data; identify current working conditions and platform workers’ needs; conduct further field research studies; and develop analyses of and recommendations for the legal protection of platform workers.
- Find novel ways to use the internet as a tool to communicate with platform workers, and expand the scope of membership to include ‘auto-entrepreneurs.’
- Identify and train a team of platform workers who can lead organizing and outreach efforts.

The key stakeholders involved are unions and platform workers. Through the research conducted as part this report — both by participating in discussion around the policy aims and thus coming to recognize their importance, as well as reading this report and agreeing with it — the leadership of the Union marocaine du travail (UMT) has recognized the importance of including platform workers in their union. While it may be more challenging to include platform workers in the union given their status as “self-employed entrepreneurs,” the industry’s high turnover rate and the lack of a physical place of work, Solidarity Center’s experiences in the Philippines, Columbia and Nigeria have proven the feasibility of including platform workers in unions. And from these experiences, Solidarity Centers has developed a best practices roadmap for the inclusion of platform workers in unions.

b. Advocacy

Once the union has created a leadership and communication infrastructure in touch with a base of workers, it can more effectively advocate, both at the national and international level, for the rights of workers. These include:

- Enhancing active and effective participation in collective bargaining and the national and international tripartite social dialogues comprising parties working on raising awareness about digital platform worker-related matters.
- Reviving the role of unions in fostering cooperation and forming alliances with social organizations and other social forces to help moving beyond the regular/traditional trade unions in order to form new alliances or hybrid organizations. This would involve enhanced monitoring of labor violations and efforts to advocate for platform workers’ rights at the community level.
- Emphasizing and moving toward international social dialogue and inter-organizational cooperation among labor, worker organizations, and governmental organizations in order to establish a more effective and coherent approach and classification of platform workers. Such an effort should aim to expand and adapt legal frameworks and policies as needed in order to guar-

antee workers' right to social insurance benefits and collective bargaining.

- Launching a digital campaign to organize platform workers and to raise awareness about the reality of Morocco's platform workers.

Successful advocacy efforts in other countries have included:

- **Collective Bargaining:** Some countries, such as Canada, Ireland, Japan, and Spain, have introduced exceptions in their legal frameworks for certain categories of self-employed workers that allow platform workers to engage in collective bargaining.
- **Occupational safety and health:** Laws in Australia and New Zealand have adopted broader statutory language and extended occupational health and safety coverage to all workers. In Brazil, a judicial decision has extended existing occupational health and safety legal standards to platform workers.
- **Social security:** France requires that platforms cover accident insurance costs of self-employed workers. Many Latin American countries have extended social security for self-employed workers. Indonesia and Malaysia provide work injury and death benefits to workers on particular platforms.
- **Employment relationship:** Countries have adopted varying broad and narrow approaches to the classification of platform workers' employment status classification of platform workers, approaches that often arise from litigation. These range from (re)classifying them as employees, maintaining their status as independent contractors or adopting (or creating a de facto) intermediate category to extend certain labor protection or benefits to the workers.

c. *Protecting Freedom of Association*

One of the biggest challenges to including platform workers in unions is that platform companies have routinely responded by opposing platform workers' effort to unionize and pushing back against regulatory control in courts and legislatures. On occasion, companies simply exit markets, leaving large numbers of workers unpaid and suddenly without a job and scrambling to enroll on another platform.

The government has an important role to play in ensuring that platform worker rights are protected and that they have access to social protection benefits. The most critical role that the government can play is to ensure that platform workers' freedom of association is protected.

"The right to freedom of association involves the right of individuals to interact and organize among themselves to collectively express, promote, pursue and defend common interests. This includes the right to form trade unions."³ This means not allowing the classification of "auto entrepreneur" or "worker" to deny the freedom of association of platform workers. Governments also have a critical regulatory and enforcement role to play, since laws are weak without enforcement.

6. References

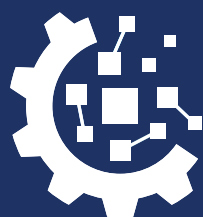
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March 2025